



SUMMARY REPORT

Agenda Date: 4/16/2019

To: Board of Supervisors of Sonoma County
Department or Agency Name(s): Sheriff's Office
Staff Name and Phone Number: Melissa MacDonald, 565-3922
Vote Requirement: Majority
Supervisory District(s): All Supervisory Districts

Title:

2019 Domestic Cannabis Eradication/Suppression Program Letter of Agreement

Recommended Actions:

Authorize the Sheriff to execute the 2019 Domestic Cannabis Eradication/Suppression Program Letter of Agreement and any Amendments that do not substantially alter the scope of the Agreement with the Drug Enforcement Administration, in the amount of \$40,000, to support efforts related to eradicating illegal cannabis activity in Sonoma County.

Executive Summary:

Upon execution of the Letter of Agreement, the Sheriff's Office will receive up to \$40,000 for illegal cannabis suppression and eradication activities during the period of October 1, 2018 to September 30, 2019 from the Drug Enforcement Administration's 2019 Domestic Cannabis Eradication/Suppression Program. The grant will offset expenditures associated with deputy overtime, supplies, and equipment. The Sheriff's Office will recognize the revenue on a monthly basis.

Discussion:

The Sheriff's Office received the 2019 Domestic Cannabis Eradication/Suppression Program Letter of Agreement from the Drug Enforcement Administration on February 22, 2019. The Sheriff's Office has been awarded a \$40,000 grant; the Sheriff's Office hopes to expend all funds over the 12-month grant period of October 1, 2018 to September 30, 2019, with peak illegal cannabis eradication season typically occurring during the months of August through October. The funding is awarded based on operational need and historic activity.

The 2019 award of \$40,000 represents a decrease in grant funds from the 2018 grant year. During the 2018 grant year, 75% of the expended funds went toward overtime expenditures, and the remaining 25% was spent on gear and equipment. The federal government continues to consider cannabis to be a controlled substance, although there is growing public acceptance of cannabis use, as reflected in the passage of California's Proposition 64, which legalized recreational cannabis use. At this time, it is unknown whether the Sheriff's Office will continue to receive funding from the Domestic Cannabis Eradication/Suppression Program in future years and if so, at what level.

Since 1995, The Sheriff's Office has received grants from the Domestic Cannabis Eradication/Suppression Program to support the Sheriff's illegal cannabis suppression efforts. Grant funds are administered by the Drug

Enforcement Administration and are specifically designated to cover illegal cannabis eradication efforts.

In 2017, the Sheriff's Office's Narcotics Unit was disbanded as a result of funding constraints and necessary budget reductions. Lack of assigned personnel requires overtime from detectives in other investigative units to handle narcotics cases that arise. Various laws have been implemented which allow for the use of cannabis recreationally under specific circumstances to include retail sales. Laws have also reduced the sale, transportation, and cultivation of cannabis to low-level misdemeanors and infractions, leaving the industry ripe for black market and out-of-state diversion. The Sheriff's Office anticipates that illegal cannabis cultivators, sellers, and butane honey oil manufacturers will continue to take advantage of reduced proactive enforcement activities to benefit financially. More commercial operations will likely result in higher incidents of theft, robbery, and other violent crime. Funding provided by the Domestic Cannabis Eradication/Suppression Program provides additional resources to support illegal cannabis-related investigations.

\$40,000 is available to the Sheriff's Office for expenditures incurred during the period of October 1, 2018 through September 30, 2019. The grant will offset expenditures associated with deputy overtime, supplies, and equipment, which have historically been approved by the Drug Enforcement Administration.

Prior Board Actions:

Board approval of agreements for the Domestic Cannabis Eradication/Suppression Program for the past twenty fiscal years (FY 96-97 through FY 18-19), most recently on March 13, 2018.

FISCAL SUMMARY

Expenditures	FY 18-19 Adopted	FY19-20 Projected	FY 20-21 Projected
Budgeted Expenses		\$40,000	
Additional Appropriation Requested			
Total Expenditures			
Funding Sources			
General Fund/WA GF			
State/Federal		\$40,000	
Fees/Other			
Use of Fund Balance			
Contingencies			
Total Sources		\$40,000	

Narrative Explanation of Fiscal Impacts:

No matching funds are required for Domestic Cannabis Eradication/Suppression Program participation. Revenues and expenditures for the 2019 Domestic Cannabis Eradication/Suppression Program funding are included in the Sheriff's Office FY 19-20 recommended budget. The Sheriff's Office initially requested \$50,000 in funding. Accordingly, \$50,000 was included in the FY 19-20 budget request. When the DEA announced award amounts in February 2019, the Sheriff's Office only received \$40,000. The Sheriff's Office will make the

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necessary budgetary adjustment in accordance with the County's budgetary adjustment procedures. The Sheriff's Office anticipates spending the awarded funds around July when the majority of these funds have historically been spent.

Staffing Impacts:			
Position Title (Payro	Monthly Salary Range (A - I Step)	Additions (number)	Deletions (number)

Narrative Explanation of Staffing Impacts (If Required):

N/A

Attachments:

2019 Domestic Cannabis Eradication/Suppression Program Letter of Agreement
2019 Supporting Documents for Letter of Agreement

Related Items "On File" with the Clerk of the Board:

N/A